

CITY COUNCIL AGENDA ITEM COVER SHEET

DATE OF COUNCIL MEETING: June 29, 2013

TYPE OF DOCUMENT: (_____ ORDINANCE) (_____ RESOLUTION) (_____ PRELIMINARY PLAT/PRELIM ZONE CHANGE) (X LEASE/CONTRACT) (_____ CHANGE ORDER/CONTRACT MODIFICATION) (_____ CONSIDER BID) (_____ APPLICATIONS/LICENSES/PERMITS) (_____ APPOINTMENTS) (_____ ANNOUNCEMENTS/REPORTS/MOTIONS) (_____ OTHER)

SPONSOR (S): (ORDINANCES/RESOLUTIONS ONLY)

EXACT WORDING OF ENTITLEMENT/ITEM: Contract WITH IMS- Infrastructure Management Services
Pavement Condition Survey, Assessment and Inventory Services

(1% Sales Tax Funding/Years 2011-2014)

(Other Funding	N/A	) (Grant	NA
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CONTACT PERSON: Craig LaVoy **PHONE:** 637-6294 **DEPT:** Public Works

OTHER CITY DEPTS AFFECTED:

OTHER GOV'T AGENCIES AFFECTED:

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: \$99,810.00

CONTRACT TERM: 2 years **STARTING DATE:** 7/10/2013

	Yes	No	N/A
Is funding budgeted?	(<u> X </u>)	(<u> </u>)	(<u> </u>)
Were Bids called for?	(<u> </u>)	(<u> </u>)	(<u> X </u>)
Affected parties notified of Council procedure & dates?	(<u> X </u>)	(<u> </u>)	(<u> </u>)
Has bond, insurance or other security been arranged?	(<u> </u>)	(<u> </u>)	(<u> X </u>)
Have legal descriptions been checked?	(<u> </u>)	(<u> </u>)	(<u> X </u>)

Agenda item reviewed and/or approved by:

Risk Mgr (x) **City Attorney** (**X**) **Dept. Head** (**X**)

General Comments: This contract will collect a road condition survey for our pavement management program

Submitted by: Craig LaVoy **Title:** Public Works Engineer **Date:** 6/19/2013

UPON PASSAGE OF THIS AGENDA ITEM, COPIES SHOULD BE SENT TO:

Craig LaVoy

Moniet Flores

Vicki Nemecek

Rev. 6/2008

D. W. [Signature]

Date: May 31, 2013

By: [Signature]
Date: 6-10-13

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Pavement Condition Survey, Assessment and Inventory Services**

RFP- 9-13

CONTRACT # _____

PROJECT NAME – **Pavement Condition Survey, Assessment and Inventory Services**

PROFESSIONAL SERVICES AGREEMENT

THIS AGREEMENT made and entered into this 10 day of July, 2013, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the “City” and IMS Infrastructure Management Services, hereinafter referred to as “Consultant”.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK:

The Consultant agrees to provide services as described for the above mentioned project, in accordance with the Scope of Work attached hereto as Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE:

The Scope of Work shall be completed and submitted to the City in accordance with the project schedule given in Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne which is attached to the agreement, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne must be agreed upon in writing by the parties.

3. CONSULTANT RESPONSIBILITY:

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies.

4. COMPLIANCE WITH LAWS:

The Parties agree that they will perform their obligations as provided in this agreement in

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Project Name: **Pavement Condition Survey, Assessment and Inventory Services**

accordance with all applicable laws and ordinances.

5. **DRUG-FREE WORKPLACE:**

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and Subcontractors are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the consultant while performing the duties and responsibilities of the contract. It is the responsibility of the consultant to familiarize himself with the requirements of this policy and to inform all his employees and sub-contractors of the requirements and ensure their compliance. If the consultant, his employees or sub-consultants are found in violation of this policy, the contract may be terminated.

6. **INDEMNIFICATION / HOLD HARMLESS:**

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or subcontractors in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. **GOVERNING LAW, JURISDICTION AND VENUE:**

The construction, interpretation and enforcement of this Agreement is governed by the laws of the State of Wyoming. The courts of the State of Wyoming have jurisdiction over this Agreement and the parties, and the venue would be in the First Judicial District, Laramie County, Wyoming.

INSURANCE REQUIREMENTS:

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of

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Project Name: **Pavement Condition Survey, Assessment and Inventory Services**

property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

(1) Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and

(2) In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and

(3) Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement;

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Project Name: **Pavement Condition Survey, Assessment and Inventory Services**

and

(4) In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Consultant shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this agreement shall have a minimum A. M. Best rating of A- (excellent).

8. DUTIES, RESPONSIBILITIES AND LIMITATIONS OF AUTHORITY OF THE CONSULTANT.

The Engineer shall supervise and be accountable for all engineering matters related to the project. This responsibility shall extend to supervision and responsibility for the actions

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Project Name: **Pavement Condition Survey, Assessment and Inventory Services**

of sub-contractors or consultants working for the Engineer.

9. MINORITY BUSINESS ENTERPRISES:

All parties to this agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this agreement on the grounds of age, race, color, disability, national origin or sex.

10. COMPENSATION:

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant according to the fee schedule given in the Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne which is attached to this agreement, incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant's progress, verified by the City, in completing the work as described in Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne. Progress and final payment shall be made following acceptance of the work by the City; however, in no case more than 60 days following receipt of the invoice by the City. Original quality reproductions of all designs, plans, reports, specifications, drawings and other services rendered by the Consultant shall become the sole property of the City and shall be delivered to the City along with final invoice, immediately upon their preparation. A portion of the payment may be held until any claims are resolved.

11. CITY REPRESENTATIVE:

Prior to commencement of work, the City will designate in writing, a City Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the City Representative.

12. INDEPENDENT CONTRACTOR:

The Consultant shall function as an independent contractor for the purposes of this agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this agreement. Nothing

in this agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City of Cheyenne or to incur any obligation of any kind on the behalf of the City of Cheyenne.

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Pavement Condition Survey, Assessment and Inventory Services**

13. TAXES:

The Consultant agrees to pay all taxes, excises, license fees, permit fees, bills, debts and obligations incurred by/or in connection with its operations under this agreement.

14. APPROVAL OF PLANS:

The City's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The City's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the City's rights under this agreement or any of its legal rights under statute or common law arising out of the performance of this agreement.

15. DEFAULT:

Each and every term and condition in this agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

16. REMEDIES:

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages;
- b. Treat the agreement as continuing and require specific performance; or
- c. Avail itself of any other remedy at law or equity.

17. TERMINATION BY CITY:

The City Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this contract in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected, and
- b. Deliver to the City Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.

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Project Name: **Pavement Condition Survey, Assessment and Inventory Services**

In the event of termination for convenience, the City will pay consultant for accepted work done to date of termination.

The agreement may be terminated in fifteen (15) days by either party with cause.

18. ADDITIONAL REMEDIES OF CITY:

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant.

19. GOVERNMENTAL IMMUNITY.

The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 et seq.

20. ENTIRETY OF AGREEMENT:

This agreement consisting of the submitted proposal consisting of Twenty-Six (26) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Pavement Condition Survey, Assessment and Inventory Services**

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

CITY OF CHEYENNE, WYOMING

By: _____
Richard L. Kaysen, MAYOR

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Date: _____

CONSULTANT FIRM

By: _____

Title: _____

Date: _____

ADDRESS: _____

EXHIBIT "A"

SCOPE OF WORK

A. Project Description

The City of Cheyenne, Wyoming is seeking qualification statements and service proposals from consulting groups for the Pavement Condition Survey, Assessment and Inventory Services. The proposals should be designed to provide the City with a clear understanding of the scope of work to be completed. The specific nature of the scope of work for the project is outlined in this Request for Proposal (RFP). Consultants responding will be evaluated and a short list developed for formal interviews to be conducted at a later date. A schedule for Consultant selection and project completion is attached. Such proposals shall be submitted to the City of Cheyenne's Purchasing Office, 2101 O'Neil Ave. Cheyenne, Wyoming by 3:00 pm May 15, 2013

I. Introduction and Background

The City of Cheyenne's pavement management program has historically been operated through the Metropolitan Planning Organization (MPO). In FY 2010 the MPO changed from STANTEC to Lucity (formally GBA masterseries) pavement management software (PMS). The city has chosen to assume the pavement management program to create a better QC/QA of our road network. The City will continue using Lucity as our PMS and schedule a Pavement Condition Survey and Assessment and Inventory Service period every four (4) years. In order to maximize ongoing investment, the City of Cheyenne believes it may be better to emphasize a cost benefit analysis (CBA) rather than PCI alone. By modeling the return on CBA, network needs may be indentified objectively, in terms of maximum CBA rather based solely on a certain level of PCI.

The successful proposer will be expected to commit, at a minimum, to perform the tasks described in the FY 2010 MPO Data Collection Project Scope of Work, which is attached as Exhibit D. However, proposers are encouraged to identify other work activities, tasks or techniques which, in the view of the proposer, are necessary to provide a complete, valid, and useable pavement condition survey, analysis, and inventory.

The successful proposer must have working experience in roadway data collection and the Lucity PMS.

II. Project Objectives

The objectives of this project are:

- ◆ Pavement Condition Survey
- ◆ Insure the City has the latest version of Lucity and if not provide assistance with updating the City's system.

- ◆ Upload or manually enter pavement condition survey.
- ◆ Upload or manually enter the 2010 sign survey data into Lucity Software.
- ◆ Confirm the 2010-present road maintenance updates for the cities networks are recorded and accounted for in the PMS
- ◆ Update operations parameter with previous year's data.

III. Scope of Services

The successful proposer will be required to perform the work tasks itemized in Exhibit D attached hereto, the additional work activities and tasks identified in sub-section A. of this Section III, and such other and further work activities, tasks or techniques necessary to provide a complete, valid and useable pavement condition survey, analysis, and inventory.

A. Pavement Condition Assessment/Rating Methodology

Provide a packaged, or work with City staff to develop, an objective, reproducible pavement condition assessment methodology.

- i. The pavement condition data collection and assessment methodology must be compatible and integrated with the City's pavement management system, Lucity Version 7.2 or latest version.
- ii. The pavement condition data collection and assessment methodology should serve to maximize the modeling capabilities of Lucity Version 7.2 or latest version
- iii. The methodology must incorporate CBA. A primary emphasis on CBA is preferred; however conversion from PCI, or other rating, will also be considered.
- iv. Approaches affording interagency comparison are preferred.
- v. Approaches tailored to local conditions are preferred.
- vi. Approaches incorporating semi-automated/automated data collection are presently preferred. However, the preference is subject to alternative recommendation.
- vii. Lucity shall be configured, as necessary, to accommodate the selected methodology.
- viii. Following completion of other work tasks, operation Parameters need to be updated with previous years' ratings.

B. Pavement Condition and Inventory Survey

Perform a pavement condition survey of the City's entire street network using the selected methodology, review existing inventory data, and correct any discrepancies.

- i. Based on the current inventory, the City's paved street network consists of approximately 400 centerline miles, as follows:

City		
ST_CLASS	Survey_Pass	Miles
LOCAL	1	238.19
COLLECTOR	1	30.37
COLLECTOR	2	41.1
MINOR ARTERIAL	2	66.82
PRINCIPAL ARTERIAL	2	21.74
Total		391.32

- ii. The current Lucity inventory consists of approximately 4,392 subsegment and 541 super segment records. Each of these existing records shall be reviewed for accuracy in terms of pavement type, length and width, and corrected as necessary.
- iii. Distress data collection is anticipated to include at least the following (subject to alternative recommendation):
 - 1. Pavement roughness (IRI), or ride quality (all surfaces)
 - 2. Longitudinal cracking (concrete and asphalt surfaces)
 - 3. Transverse cracking (concrete and asphalt surfaces)
 - 4. Distortion (concrete surfaces)
 - 5. Raveling (asphalt surfaces)
 - 6. Fatigue (alligator) cracking (asphalt surfaces)
 - 7. Scaling (concrete surfaces)
 - 8. Spalling (concrete surfaces)
- iv. Pavement distress type and severity shall be in accordance with the “Distress Identification Manual for the Long-Term Pavement Performance Program” (FHWA- RD-03-031).
- v. Distress data collection must incorporate formal quality assurance and quality control procedures sufficient to ensure and verify the accuracy, repeatability, and consistency of the collected data.

C. Data Entry

Upload or manually enter the pavement condition survey data into Lucity.

- i. The current Lucity inventory consists of approximately 4,392 subsegment and 541 super segment records. Each of these records shall be updated via Lucity field inspection records, either individually, or batched.
- ii. Data entry must incorporate formal quality assurance and quality control procedures sufficient to ensure accuracy, and the preservation of existing data.
- iii. Upload or manually enter the 2010 Sign inventory into the Lucity Software.

D. Staff Training

Train selected City staff to conduct pavement condition survey and assessment using the selected methodology.

- i. At a minimum, hands-on training should be a point of emphasis during the

formal condition survey.

ii. A written manual covering all aspects of the pavement condition assessment/rating methodology shall be provided in both print (2 bound copies) and digital (PDF and Microsoft Word) format.

E. Contract Renewals

i. The professional services agreement to be awarded to the successful proposer may include provisions for the renewal of the agreement upon the joint written consent of the parties.

IV. Materials/Information to be Provided by the City of Cheyenne

The following documents will be provided to the consultant by the City of Cheyenne Public Works Office:

- ◆ Access to files on the City's GIS network.
- ◆ 2010 road condition survey and access to data files in Lucity PMS
- ◆ 2010 sign data collection files
- ◆ 2010 to present road maintenance activities

V. General Criteria for Evaluating Qualification Statements.

Experience:

The experience of proposers should be documented, including experience in projects similar to the project proposed by the City of Cheyenne. Experience with similar types of data collection projects and experience in the operations of Pavement Management Software programs, particularly Lucity software, should be described.

Expertise:

Specific expertise is desirable in a variety of areas including the following:

- ◆ Developing design cost estimates that are within five percent of actual costs.
- ◆ Professional references shall be provided wherever practicable.

Workability:

The qualification statement should document the ability of the proposer to work with a diverse group of individuals and agencies including elected officials, citizens, property owners, businesses, and governmental organizations.

Conflicts of Interest:

The qualification statement shall specifically disclose any possible conflicts of interest and shall describe the proposer's position with respect to the avoidance or mitigation of any such conflicts of interest.

Special Qualifications:

The qualification statement shall identify any specific qualifications which might make the proposer uniquely qualified to provide the requested services. These may include similar work experience in another community of similar size or a project of similar design.

Professional Staff:

The proposer shall describe the experience of personnel who will be assigned to this project. Please attach individual biographical resumes documenting specific project experience related to the work tasks outlined in this request for proposals.

VI. Sub consultants

The successful proposer shall be responsible for any and all fees, charges, costs and expenses that may be charged by sub-consultants retained by the proposer to perform any portion of the project work. No sub-consultant may be retained by the proposer in the absence of the approval of the sub-consultant by the City.

VII. Meetings

The successful proposer consultant shall meet with members of the City staff at least on a monthly basis during the term of the contract for project updates. The consultant may also be required to meet with the City Council to discuss the project and/or recommendations.

VIII. Contract

The consultant will be required to sign a contract with the City of Cheyenne, in the form attached, relating to the work to be performed. Such contract shall include, but not necessarily be limited to, the following articles: method of compensation, time of performance, subcontracts, duties of the consultant, termination of the contract, ownership of material, changes, EEO, submission of material, and obligations to the City. See attached sample professional services contract.

IX. Recommendations

To be considered, the proposal must respond to all requirements in the RFP. Any other information believed to be relevant, but not applicable to the enumerated categories, should be provided as an appendix to the proposal. If publications are provided, the document and

page number shall be referenced. The proposal shall be divided into sections as indicated below:

Statement of Project Requirements: Each proposer shall state in sufficient terms its understanding of the project requirements presented in this RFP.

Scope of Work: Each proposer shall describe in narrative form the proposer's technical plan for accomplishing the work. Please use the Scope of Work tasks provided in this RFP as the point of departure. Additions to or modifications of the Task descriptions are permissible, but reasons for changes shall be fully described in reference to specific Tasks. Include a Gantt chart showing each task and event. In addition, include a cross reference of each task and event with the proposed assigned staff and number of hours for each staff position to complete the task or event. A fee schedule with each proposed staff position must be included.

Personnel and Prior Experience: Each proposal should identify specific executive, professional and technical personnel who will be assigned to the project. The proposal shall indicate the responsibilities each person will have in the project and indicate the previous related work experience of each individual. Personnel indicated having appropriate expertise for this project must be assigned to the project and actively engaged in completion of the tasks. Any changes in assignment of personnel shall be reviewed with the City of Cheyenne to assure consistent technical expertise throughout the term of the project.

Cost and Price Analysis: Each proposer is required to outline its approach to negotiating a fee for services. The proposal shall provide an estimate of the total costs involved in completing the project. The City reserves the right to contract for all or a portion of the project depending on budget constraints.

Sealed Proposals: Each proposal must be submitted to the City Purchasing Office located at 2101 O'Neil Ave, Cheyenne, Wyoming 82001 by 3:00 p.m. local time, May 14, 2013. No additional proposals will be received thereafter. Five copies of each proposal must be submitted. The proposal will remain valid for at least one hundred twenty (120) days.

X. Criteria for Selection

All proposals received shall be subject to evaluation by a Selection Committee comprised of City staff, City selected representatives and City Council representatives. The evaluation shall be for the express purpose of selecting the proposal which most clearly meets the RFP requirements. The following areas will be considered in the selection:

1. Understanding the Problem: This refers to the contractor's understanding the needs of the City of Cheyenne, objectives of the RFP, and the nature and scope of work involved.

2. Consultant Qualifications: This includes the ability of the consultant to meet the needs of the RFP, taking into consideration time constraints, cooperation and participation by City staff, elected officials, and special interest groups, and the quality and relevancy of recent projects of similar nature completed by the consultant.
3. Professional Personnel: This refers to the competence of professional personnel assigned to the project by the consultant. Qualifications of all professional personnel will be measured by education and experience, with particular emphasis on experience and analysis of innovative practices particularly in States with similar weather, population, and resources to the State of Wyoming. Individual biographical resumes with specific project experience related to a study or project similar to the Pavement Condition Survey, Assessment and Inventory Services project will be given strong consideration.
4. Soundness of Approach: Emphasis shall be placed on stated techniques for collecting and analyzing data, sequence and relationship of major project steps, methods for managing the project, rationale for Pavement Condition Survey, Assessment and Inventory Services particularly technical soundness and economical feasibility, and the practicality of successfully implementing Pavement Condition Survey, Assessment and Inventory Services
5. Cooperative Process: This refers to the consultant's understanding, expression, and historical experience involving projects which demonstrate sensitivity for developing a spirit of cooperation between different levels of government [City and State], elected officials, individual citizens, and City staff.

XI. Interviews

City staff will review all proposals and select a maximum of five (5) for interviews by the selection committee. Upon completion of the interviews one firm will be selected on the basis of compliance with criteria. In the event that a satisfactory fee cannot be negotiated with the selected firm, the City will contact other firms in the order of their ratings to negotiate a contract. Final selection and award of the contract will be made by the City Council.

XII. Fees

The negotiated fee shall be based on estimated project costs, time and materials [including hourly rate for technical personnel], and reimbursable expenses, with a cost not to exceed amount. By submission of proposal, the consultant warrants that he/she is aware of the budget for the project and is confident that he/she will be able to complete the project within budget.

XIII. Contract Award

The City of Cheyenne reserves the right to accept, reject, or request changes in proposals. The City will work closely with the selected consultant to develop or refine a detailed scope of work, schedule for completion of tasks and costs associated with completed work included in the contract documents. The City is not liable for any costs incurred by the consultant prior to contract issuance.

XIV. Addenda to the Request for Proposals

In the event that it becomes necessary to revise any part of this RFP, the City will make reasonable efforts to provide such addenda to all proposers who have obtained copies of this RFP. It is the responsibility of proposers to ascertain whether any written addenda have been issued by the City prior to the submission of a proposal.

XV. Late Proposals

Late proposals will not be accepted. It is the responsibility of the consultant to ensure that the proposal arrives prior to the dates outlined in this request for proposals.

XVI. Response Material Ownership

The material submitted in response to the RFP becomes the property of the City of Cheyenne and will only be returned to the consultant at the City's option. Responses may be reviewed by any person after the final selection has been made. The City of Cheyenne has the right to use any or all ideas presented in reply to this request. Disqualification of a consultant does not eliminate this right. The consultant shall not charge for the preparation of this proposal. All materials, products, labor and indirect fees shall be at the expense of the consultant.

XVII. Acceptance of Proposal Content

The contents of the proposal submitted by the successful consultant may become contractual obligations if the City of Cheyenne wishes to execute a contract based on that proposal. Failure of the successful consultant to accept these obligations in a contract may result in cancellation of the award and such consultant may be removed from future solicitations.

XVIII. Reference Checks

A. References

The City of Cheyenne reserves the right to contact any reference, client, or regulatory agency listed in the documents for information which may be helpful to the City in evaluating the consultant's performance on previous assignments.

B. Project Budget

The total budget for the project will be based in the overall cost associated with performing the tasks outlined in the RFP with a not to exceed cost.

C. General Conditions

The following items are considered to be included as part of the basic compensation for this project:

- Normal business expenses - phone, postage, etc.
- Cost of insurance
- In-house computer time and service
- Word processing, accounting, and man-hour records
- Permits and license fees
- Mileage
- Travel fees, room and board, per diem
- Printing costs for all standard review, bidding, and as-constructed plans and other correspondence and contract documents
- Film and processing
- Overtime engineering and inspection
- Special inspections, including vacuum excavation pot-holing
- Survey materials, stakes, etc
- Additional services which are reasonably necessary, in accordance with industry standards, to provide a complete, valid and useable pavement survey, analysis and inventory.

Any changes in the Consultants or Sub-consultants staff or fee structure shall be presented in writing to the City for approval prior to initiating any changes or performing any work.

“EXHIBIT B”

COMPENSATION SCHEDULE

The Consultant shall prepare and submit proposed estimated compensation, bearing in mind that it should be a unit-based contract with a negotiated not-to-exceed amount. A Payment Schedule based upon the following and any other pertinent payment schedule shall be submitted with payment for a specific phase not exceeding the scheduled amount prior to completion of that phase:

Total Contract Amount	\$ <u>99,810.00</u>
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*** Consultant shall insert a fee schedule with a total not to exceed amount as the Total Contract Amount**

***All fees associated with sign data upload, conversion and Lucity PMS training needs to be clearly defined and a total amount not to exceed needs to be well defined.**

City of Cheyenne

Pavement Condition Survey, Assessment and Inventory Services

2013 Proposed Fees

Task	Activity	Quant	Units	Unit Rate	Total
Project Initiation					
1	Project Initiation	1	LS	2,500.00	\$2,500.00
2	Network Referencing & GIS Linkage	521	MI	15.00	\$7,815.00
Field Surveys					
3	Mobilization/Calibration	1	LS	3,000.00	3,000.00
4	RST Field Data Collection	521	MI	100.00	52,100.00
Data Management					
5	Data QA/QC, Processing, & Format	521	MI	15.00	7,815.00
6	Data Load into Lucity	1	LS	2,500.00	2,500.00
7	Pavement Analysis, Budget Development, & Report	1	LS	8,500.00	8,500.00
8	Principles of Pavement Management Training	1	DA	3,500.00	3,500.00
9	Sign Data Load into Lucity	1	LS	2,500.00	2,500.00
10	City Council Presentation	1	LS	3,000.00	3,000.00
11	Project Management and Meetings 7.5%	1	LS	6,580.00	6,580.00
Data Collection Total:					\$99,810.00

Optional Service Items and Activities					
12	Collection of digital images complete with GPS coordinates 25 foot intervals (per view)	521	MI	\$15.00	\$7,815.00
13	Collection of GPS, crossfall, radius of curvature, and grade	521	MI	\$15.00	\$7,815.00
14	Right Of Way Asset Data Collection (GPS and Images)	521	MI	\$20.00	\$10,420.00
15	Sidewalk and Curb & Gutter database development	521	MI	\$100.00	\$52,100.00
16	ADA Ramp & Compliance Survey	521	MI	\$60.00	\$31,260.00
17	Sidewalk Obstruction Survey for ADA Compliance	521	MI	\$30.00	\$15,630.00
18	Deflection Testing	260	MI	\$120.00	\$31,200.00
19	Ground Penetrating Radar (GPR)	260	MI	\$130.00	\$33,800.00

Pricing is valid for 120 days from submittal date. The City of Cheyenne can add additional services or miles using the unit rates above.

“EXHIBIT C”

PROJECT SCHEDULE



2.0 SCHEDULE

2.1 CURRENT WORKLOAD AND PERSONNEL AVAILABILITY

IMS Infrastructure Management Services is a full service professional engineering consulting firm that specializes in the field of pavement and asset management. IMS undertakes assignments across the United States and Canada. In our 30 year history we have completed in excess of 500 assignments ranging from southern California to eastern Ontario and virtually all locations in between. **One hundred percent** of IMS clients exist in the public sector

Agency	State	Agency	State
Lincolnshire, Village of	Illinois	Weatherford, City of	Texas
Carrollton, City of	Texas	Fontana, City of	California
Kelowna, City of	British Columbia	Spokane Valley, City of	Washington
Visalia, City of	California	Sanford, City of	Florida
Moorhead, City of	Minnesota	Del Mar, City of	California
Cerritos, City of	California	Sheridan, City of	Wyoming
Sarnia, City of	Ontario	North Port, City of	Florida
Cambridge, City of	Ontario	Farmers Branch, City of	Texas
Norman, City of	Oklahoma	Buffalo Grove, Village of	Illinois
Evanston, City of	Illinois	Glendale, City of	Arizona
Downey, City of	California	Kelowna, City of	British Columbia
Lafayette, City of	Colorado	Oak Park, Village of	Illinois
Monterey, City of	California	Lake Forest, City of	Illinois
St. Charles, City of	Illinois	Salisbury, City of	Maryland
Federal Way, City of	Washington	Kitsap County	Washington
Langley, Township of	British Columbia	Lake County	Illinois
DeKalb, City of	Illinois	Monroe County	Florida

and all projects are related to the field of pavement and asset management. With over 30 years of dedicated experience to the public sector, IMS maintains hundreds of clients. The adjacent image illustrates the current open projects.

The IMS team completes approximately 35 - 45 pavement and right of way asset management assignments on an annual basis.

The following chart details the percentage of time that each key staff member will contribute to each of the task activities as described in the scope of work and "Exhibit D" of the RFP. This breakdown only represents the priorities and areas of focus for each staff member.

Task Description	Key Staff Members Level of Effort					
	Stephen Smith	Dave Butler	Marty Shaeffer	Alan Sadowsky	Mike Powell	Isai Sanchez
1 Project Initiation	5	5		5		
2 Network Referencing		5	30			30
3 GIS Linkage			30		10	10
4 Mobilization/Calibration	5	15		20		
5 RST Field Data Collection		15		20	30	
6 Digital Image & GPS Coordinate Data Collection		15		20	25	
7 Data QA/QC, Processing, & Format	20	20		20	20	60
8 Data Load Into Lucity	5		40		10	
9 Pavement Analysis, Budget Development, & Report	50	10				
10 Project Management and Meetings	15	15		15	5	
Percentages Listed						

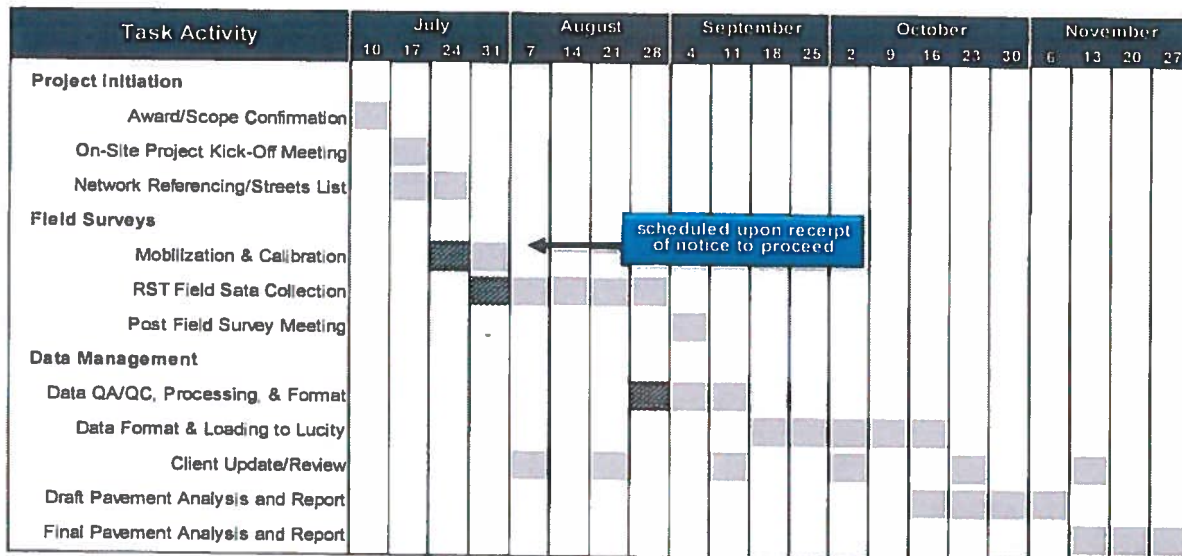


2.2 DETAILED PROJECT SCHEDULE

Currently IMS has a total capacity to complete 2,500 miles/month based on urban surveys, so completing the Cheyenne surveys in a timely fashion is not an issue. Field surveys are expected to progress at a conservative rate of 25 to 35 miles per day in urban areas increasing up to 75 miles per day in rural environments. Surveys usually proceed at 5.5 to 6 days per week depending on weather, congestion, and statutory holidays. Elapsed time for the 2013 City of Cheyenne field surveys is estimated at **3 to 4 weeks**. Assuming a notice to proceed date of July 10, 2013, the field surveys would be completed before the City's deadline of September 1, 2013. In place of "Exhibit C" we have submitted a detailed chart to depict the project schedule below.

On all projects three rate-determining functions rise to the top as being critical in maintaining the proposed project schedule. In general it is not the surveys that take the longest time, but rather handling the data that cause project schedules to slide. The three steps we wish to highlight, so they can be addressed by the City are:

- Finalizing the inventory and maps to be used for the field surveys. The delay in this step usually occurs in obtaining the maps or GIS topology, confirming the streets list and then validating the limits of the surveys.
- Review of the field data and exceptions reports delivered to the clients. As part of the QA/QC process, only quality data can pass through to the analysis. Thus it is critical that once the data passes through the IMS QA/QC process, it be accepted and signed off by the client agencies.
- Obtaining feedback and acceptance of the final format and load. No matter how much planning work goes into a schedule, the bottom line is Councils operate on their own timetable and the project must be able to conform to their schedules.



The schedule reflects a notice to proceed date of July, 10 2013. Should the notice to proceed date be pushed back, the IMS team would work with the City staff to accelerate the data collection schedule.

"EXHIBIT D"

To: James Sims, Cheyenne MPO	Date:
From:	Project: City of Cheyenne
Subject: Scope Document	Project No.:

Task	Description	Activities	Deliverables
Base Project Activities			
1.	Project Initiation	- Conduct kick off meeting confirming scope, extent and content of surveys, set milestones and deliverables. - Confirm key contacts, roles and responsibilities and project documentation. - Identify location of key data elements such as traffic data, GIS, existing roadway inventories, historical data, and pavement management data. - Identify deficient data and the means to obtain it. - Review Lucity and data within. - Provide data QA plan to City. - Confirm phases of the work and invoicing methodology.	Technical memo detailing scope of work, budget and deliverables.
2.	Network Referencing	- Using the City's GIS centerline topology, develop a network wide roadway inventory suitable for use in the selected PM system. - Include street number and block order in referencing. - Link each segment to its parent GIS section. - Obtain roadway attributes from GIS for functional class, traffic, width, length, pavement type, curb type, etc. If not available, devise plan to obtain them. - Create survey maps for use by the RST and client review.	Survey maps and inventory for use on the project.
3.	GIS Linkage	- Create the linkage of all roadway segments and elements to the City's existing GIS. - QA/QC the inventory and all condition data	Inventory spreadsheet containing all assigned GIS ID's.
4.	Mobilization/Calibration	Mobilize surface distress, roughness and rutting testing equipment to project	Equipment calibration results

“EXHIBIT D”

	• Demonstrate the equipment to the City • Calibrate equipment.	
5. RST Field Data Collection	• On all arterials and striped collectors, complete 2 pass testing collecting up to 9 distresses and attributes at 100-foot intervals on a block by block basis. Local roadways will receive a single pass. • Test 400 miles of Cheyenne roadway and 80 miles of county roadways using the RST technology. • Collect/confirm attributes such as FunCL, pavetype, ADA and curb type. • Develop exceptions report for lengths that do not match GIS.	2-pass on arterial & collector surface distress extent and severity data. Single pass testing on locals.
6. Digital Image and GPS Coordinate Data Collection	• On all arterials and striped collectors, complete 2 pass GPS and multi-view digital images data collection. Locals will receive 1 pass.	2-pass GPS coordinate data and digital images on arterials and collectors. 1-pass on locals.
7. Data QA/QC, Processing, & Format	• For each data stream (surface distress, roughness, GPS), aggregate and process the data at 100-foot intervals. • Develop individual index scores for surface distress, and roughness structure as appropriate. • Develop an overall condition score for each section • Process the same data to the block level. • Shape files of the processed data. • Complete QA of data.	Excel spreadsheet of the sectional data and index values. Shape files of the condition data at the 100 foot and block levels.
8. Data Load into LUCITY	• Assemble and load data in the City's LUCITY PMS software. The data will also be delivered in excel or access.	Completion of data loaded into LUCITY.
9. Pavement Analysis, Budget Development, & Report	• Present status and PCI report in Excel format c/w PCI charts and backlog. • Fix all needs analysis and budget. • Budget driven analysis (\$/yr estimate). • Integrate City capital plans and "must do's" (\$ to hit set PCI and backlog target). • Finalize draft analysis and budgets. • Final report and make 2-copies of report plus electronic files. • Create shape files of results	Draft analysis and report. Up to 5 models/budget analysis options will be completed. Final report and shape files – both hard copy and electronic.

“EXHIBIT D”

- | | | | |
|-----|--|--|-----------------------------|
| 10. | Project Management and Meetings @ 7.5% | <ul style="list-style-type: none"> • Present report to City in a working meeting format. • Provide client with periodic e-mail updates and reports. • Meetings to be completed on-site and by conference calls. • Complete project administration and invoicing. | Status reports and invoices |
|-----|--|--|-----------------------------|

Optional Network and Project Level Services

- | | | | |
|-----|---|---|--|
| 11. | Right of Way Asset Data Collection (GPS & Images) | <ul style="list-style-type: none"> • Utilizing the right of way digital images and GPS data, develop a digital image library at 25-foot intervals for the arterial roadway network. • Mount up to 4 cameras in RST to capture images on ROW assets. • | Creation of a digital library used in asset extraction. (internal use) |
| 12. | Sign Database Development | <ul style="list-style-type: none"> • Utilizing the right of way digital images and GPS data, develop a detailed sign inventory for the arterial, collector, & local roadway network. • Collect X,Y,Z for each sign. • Note sign condition using G/F/P notations. • Collect a total of 18 attributes for each sign. | Network roadway sign inventory |
| 13. | Sidewalks & Curb/Gutter development | <ul style="list-style-type: none"> • Develop an asset inventory of all assets to be collected following the MAL. • Geolocate all assets using Trident – 3D. | Spreadsheet containing the inventory of each asset collected.

Shape files of ROW assets |
| 14. | ADA Ramp and Compliance Survey | <ul style="list-style-type: none"> • Classify ramps into 4 category types. Type I - compliant. Type II - present but not compliant on either geometry or visual impairment facilities. Type III - present but not compliant of geometry and visual impairment facilities. Type IV - missing ADA ramps. | Spreadsheet containing ADA ramp compliance results. |
| 15. | Sidewalk Obstruction Survey for ADA Compliance | <ul style="list-style-type: none"> • Identify sidewalk obstructions that result in a free clearance width of less than 36 inches. • Any poles, posts, trees, street furniture, etc, that block the sidewalk will be located and catalogued. • The deliverable will be a spreadsheet of obstructions sorted by street name. • | Spreadsheet containing sidewalk obstruction results. |
| 16. | KML File/shape File Development & Delivery | <ul style="list-style-type: none"> • Develop KML files (Google Earth Overlays) and shape files for City distribution. • Up to 5 pavement and asset KML's or shape files | Delivery of KML or shape files. |

“EXHIBIT D”

		will be developed for the City.	
17.	Deflection Testing	• On all arterials, collect multi-sensor deflection data at an average of 10 tests/mile using a dynaflect. • Develop structural index for each roadway segment. • Complete 3 drops at a minimum of 1 test per block.	Structural index for each roadway section Traffic control to be supplied by the City.
18.	Ground Penetrating Radar (GPR)	• On all arterials and collectors, complete 2 pass Ground Penetrating Radar surveys. Local roadways will receive a single pass. • Develop layer thickness information on a sectional basis.	Layer thickness information
19.	City Council Presentation	• Present report to City in a working meeting format. • Create a PowerPoint presentation to showcase the results of the condition survey.	Report meeting and PowerPoint presentation.
20.	GPS, crossfall, radius of curvature, & grade	• Cross slope, radius of curvature and grade are measured with a patented road geometric pack that is integrated with the RST system.	2-pass geometrics survey on arterials and collectors. 1-pass on locals.